



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

**IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA IN AND FOR THE COUNTY
OF SAN MATEO**

Probate

Department 13

Courtroom 2C

Hon. Lisa A. Novak

September 22, 2026 - 9:00 AM

If an appearance by Zoom is allowed, parties must appear through Zoom Video.

Zoom Audio is only to be used if Zoom Video is unavailable.

Please check in with the clerk by 8:45 AM.

Zoom Video/Audio Information	Zoom Phone-Audio Only Information Please Note: You must join by dialing in from a telephone; credentials will not work from a tablet or PC
<u>Click on this link to join the Zoom meeting (no meeting ID or passcode required):</u> Meeting ID: 161 920 9458 PASSWORD: 696850	Phone number: 1 (669) 254-5252 Meeting ID: 161 920 9458 PASSWORD: 696850

If a tentative ruling contains "APPEARANCE ORDERED", failure to appear may cause the Petition to be denied or Opposition stricken. Remote appearance is allowed BUT FOR all matters in which SIJF are sought, and where the Court has ordered an In Person appearance. Failure to appear may result in sanctions.

If a tentative ruling contains "APPEARANCE OPTIONAL", failure to appear is a waiver of oral argument and the Court may issue orders differing from the tentative ruling. Zoom is allowed for all optional appearances.

If a tentative ruling contains "NO APPEARANCE", an appearance is not required, as the matter has been pre-approved, continued, or dropped, as described.

If you wish to appear in response to the tentative ruling or in opposition to a petition, you must notify the probate clerk at dept13@sanmateocourt.org and all other parties of the intent to appear. All notifications must be completed no later than 4:00 p.m. on the court day immediately preceding the day of the hearing.



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17-PRO-01145	Estate of PETER LABRADOR	PETITION FOR ORDERS: 1. APPROVING AND SETTLING REPORT OF ADMINISTRATOR; 2. WAIVING AN ACCOUNTING; 3. ALLOWING ATTORNEY'S COMPENSATION AND COST REIMBURSEMENT; 4. FINAL DISTRIBUTION.
Line 1	Petitioner: LABRADOR, JOEL (TAHENY, KEVIN A.) Decedent: LABRADOR, PETER Interested Party: STATE OF CALIFORNIA FRANCHISE TAX BOARD (Pro Se) Administrator: LABRADOR, JOEL (TAHENY, KEVIN A.)	Petition for Final Distribution

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

Petitioner to appear and provide further explanation regarding the schedule of inventory balances and why the estimated market value of the estate is \$8,000 given the assets contained in the I&A. The total assets on hand appear to far exceed the estimated market value.



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19-PRO-01476	Estate of MICHAEL ALEKSANDER KOURBAYEV	AMENDED* FINAL REPORT AND PETITION FOR: 1. SETTLEMENT OF ACCOUNT; 2. ALLOWANCE OF STATUTORY AND EXTRAORDINARY COMPENSATION FEES TO ADMINISTRATOR; 3. ALLOWANCE OF STATUTORY FEES TO COUNTY COUNSEL; 4. ALLOWANCE OF BOND FEES TO ADMINISTRATOR; AND 5. FIN
Line 2	Petitioner: SAN MATEO COUNTY PUBLIC ADMINISTRATOR (SAN MATEO COUNTY ATTORNEY'S OFFICE) Decedent: KOURBAYEV, MICHAEL ALEKSANDER Interested Party: BUSHEVA, INNA ARKADIEVNA (LOEW, JEFFREY R.) Interested Party: Ezhevskaya, Maria (FELDMAN, DANIEL BYERS) Interested Party: Ezhevskaya, Maria (LOEW, JEFFREY R.) Interested Party: KHMELNITSKY, MARGARITA S. (LOEW, JEFFREY R.) Interested Party: Matveev, Svetlana Ruvimovna Interested Party: Noah Kardyukova, Anna E. Interested Party: NOAH, IGOR BORISOVICH (LOEW, JEFFREY R.) Interested Party: SHVARTS, YELENA (LOEW, JEFFREY R.) Interested Party: STEIN, ALEXANDER I. (LOEW, JEFFREY R.) Interested Party: STEIN, LEONID I. (LOEW, JEFFREY R.) Interested Party: VAVILOV, ALEKSANDR VIKTOROVICH (LOEW, JEFFREY R.) Administrator: SAN MATEO COUNTY PUBLIC ADMINISTRATOR (SAN MATEO COUNTY ATTORNEY'S OFFICE) Proposed Personal Representative: SAN MATEO COUNTY PUBLIC ADMINISTRATOR (SAN MATEO COUNTY ATTORNEY'S OFFICE)	Petition for Final Distribution

Tentative Ruling:

NO APPEARANCE

Second Amended Petition for Final Distribution as modified by the Declaration Re Public Administrator Reserves filed on 9/14/2026 is GRANTED absent cogent objection.



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24-PRO-00719	Conservatorship of LouAnn Darleen Ghiozzi	ORDER APPROVING PETITION FOR ATTORNEYS' FEES AND COSTS
Line 3	Proposed Conservatee: Ghiozzi, LouAnn Darleen (MARTIN, ALEXANDRA R. GRUBER, JOSEPH E., JR) Petitioner: BUCKMASTER, LISA (FLETCHER, ROBERT S DERIEG, GEORGE M.) Petitioner: Ghiozzi, Aldo Anthony (FLETCHER, ROBERT S DERIEG, GEORGE M.) Petitioner: GHIOZZI, MICHAEL (FLETCHER, ROBERT S DERIEG, GEORGE M.) Proposed Conservator: Ghiozzi, Aldo Anthony (FLETCHER, ROBERT S DERIEG, GEORGE M.)	Petition Hearing
Tentative Ruling: NO APPEARANCE Petition for Attorneys' Fees and Costs is GRANTED absent cogent objection.		

24-PRO-01467	IN THE MATTER OF THE 2006 RICE FAMILY TRUST	PETITION TO CONTEST SUCCESSOR TRUSTEE APPOINTMENT, REQUEST ACCOUNTING, AND REPORT FIDUCIARY MISCONDUCT- Continued from 05/01/26
Line 4	Petitioner: Carruth, Joanne (Pro Se) Petitioner: LEIBES, RICHARD (Pro Se) Petitioner: Rice, Thomas (Pro Se) Decedent: RICE, ENES CATHERINE Decedent: RICE, WILLIAM RUSSELL	Petition Hearing



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Tentative Ruling:

APPEARANCE OPTIONAL

There are two separate petitions seeking similar relief: PETITION TO CONTEST SUCCESSOR TRUSTEE APPOINTMENT, REQUEST ACCOUNTING, AND REPORT FIDUCIARY MISCONDUCT filed 8/07/25 by Richard Liebes, and VERIFIED PETITION TO COMPEL INFORMATION AND ACCOUNTING, TO REMOVE TRUSTEE, AND TO APPOINT NEUTRAL FIDUCIARY filed 5/28/2026 by Thomas Rice. To the extent that both petitions seek an accounting, suspension of the trustee, and appointment of a neutral fiduciary, those requests are GRANTED:

Joanne Carruth is suspended as trustee and the Court appoints a neutral private professional fiduciary off of the Court's list as temporary successor trustee. If no private professional fiduciary agrees to this appointment, the Court will appoint the San Mateo County Public Guardian.

Joanne Carruth is ordered to file and serve on the beneficiaries a full trust accounting within sixty (60) days for the period beginning on the date Ms. Carruth began acting as trustee or the date of surviving settlor's death, whichever is earlier, to the present. Within sixty (60) days, Ms. Carruth is ordered to produce to the beneficiaries all supporting records for the accounting including, but not limited to:

- trust bank statements,
- transaction lists or registers,
- receipts, invoices, and bills,
- support for reimbursements,
- support for payments made to related parties, and
- records for any personal account used for trust-related transactions, to the extent necessary to trace trust funds.

Joanne Carruth is ordered to file a verified Response to each petition within 30 days. The Court admonishes Ms. Carruth that filing unverified petitions in probate is impermissible, and such documents are not considered by the Court. The remaining issues are continued to February 11, 2027 at 9:00 am for status and the setting of trial, if necessary. If no verified opposition is filed, the Court would consider granting the balance of the relief sought in each petition, to the extent there exists sufficient proof via declarations and admissible exhibits.



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25-PRO-01101	Estate of Thomas Joseph Everett	First and Final Report of Administrator, Waiver of Accounting, Petition for Statutory Commission to the Administrator, Petition for Statutory Fees to the Attorney for the Administrator, and Petition for Final Distribution of Estate
Line 5	Petitioner: Everett, John A. (KNOX, BARBARA G.) Decedent: Everett, Thomas Joseph Personal Representative: Everett, John A. Claimant: LVNV FUNDING LLC SUCCESSOR IN INTEREST TO COASTAL COMMUNITY BANK Claimant: LVNV FUNDING LLC SUCCESSOR IN INTEREST TO HSBC BANK NEVADA, N.A. Claimant: Phillips & Cohen Associates, Ltd	Petition for Final Distribution
Tentative Ruling: NO APPEARANCE Petition for Final Distribution is GRANTED absent cogent objection.		

26-PRO-00539	Guardianship of Yesenia Rosaydi Perez Lopez	
Line 6, 7	Petitioner: Perez Lopez, Yesenia Rosaydi (TESORO, GERVY JHON) Ward: Perez Lopez, Yesenia Rosaydi Proposed Guardian: Perez Lopez, Vivian Karlily	Appointment of Guardian for Person of the Minor Petition for Special Immigrant Juvenile Findings
Tentative Ruling: APPEARANCE ORDERED (Zoom not allowed) The Court intends to GRANT both petitions.		



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26-PRO-00544	Conservatorship of Jacob Gabriel Smith	
Line 8	Proposed Conservatee: Smith, Jacob Gabriel (LEE, DENISE MICHELE) Petitioner: Smith, Amy Field (LYNCH, ALEXIS) Petitioner: Smith, Gary Marc (LYNCH, ALEXIS) Proposed Conservator: Smith, Amy Field Proposed Conservator: Smith, Gary Marc Proposed Conservator: SMITH, ZACHARY ETHAN	Appointment of Conservator for Person

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

The Amended Petition for Appointment of Limited Conservators of the Person is GRANTED as follows:

1. Gary Smith, Amy Smith, and Zachary Smith are appointed limited co-conservators of the person of Jacob Smith and a conservatorship is the least restrictive alternative to protect the conservatee.
2. The following limited powers are granted to the limited co-conservators pursuant to Probate Code §2351.5 and the limited conservatee's civil and legal rights will be limited in the following areas:
 - To fix the residence or specific dwelling of the limited conservatee;
 - Access to the confidential records and papers of the limited conservatee;
 - The right to contract;
 - The power to give or withhold medical consent; and
 - Decisions concerning the education of the limited conservatee.
3. The Court sets an evidentiary hearing on November 30, 2026 at 9:00 am regarding the following powers:
 - To consent or withhold consent to the marriage of, or entrance into a registered domestic partnership by the limited conservatee; and
 - The right to control the limited conservatee's social and sexual contacts and relationships.
4. The limited co-conservators are authorized to sign applications for public benefits on behalf of the limited conservatee.
5. A nonappearance hearing on the conservator's filing of the following documents is set for January 20, 2027 at 9:00 am:
 - Confidential Conservatorship Care Plan Parts 1&2 (forms GC-355 & GC-356)
6. Pursuant to Probate Code §1830, the limited co-conservators shall file a proof of mailing of the Notice of Conservatee's Rights within thirty (30) days of appointment.
7. The limited co-conservators shall attend conservator education classes and a Proof of Completion shall be filed with the Court within six (6) months of being appointed conservators.



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8. The assessment amount of \$850.00 for the cost of the Court's investigation is ordered and deferred until the Court determines sufficient funds exist.
9. The conservatorship shall be reviewed in one (1) year.

26-PRO-00559	ESTATE OF LOYD DANIEL WILSON	
Line 9	Petitioner: Wilson, Marilyn Diane (PINTAR, JASON L.) Decedent: Wilson, Loyd Daniel	Spousal/Domestic Partner Property Petition
Tentative Ruling: NO APPEARANCE Spousal Property Petition is CONTINUED to <u>February 5, 2027 at 9:00 am</u> for Petitioner to file a supplement that includes missing attachments 9 and 10, and pursuant to Local Rule 4.14, a copy of the will that includes the coversheet showing that the original will has been lodged and a copy of all relevant deeds.		

26-PRO-00642	Estate of KATHERINE CHAN LEE	AMENDED*- Continued from 08/21/26
Line 10	Petitioner: LEE, MICHAEL F. (Pro Se) Decedent: LEE, KATHERINE CHAN Proposed Personal Representative: LEE, MICHAEL F.	Letters of Administration Hearing with ATA
Tentative Ruling: APPEARANCE OPTIONAL The Court intends to GRANT the petition, naming Michael Lee as executor of decedent's will, absent cogent objection.		

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26-PRO-00787	Estate of Charles Wayne Ludwig	Continued from 07/20/26
Line 11	Petitioner: Ludwig, Colton (HALL, PATRICK T.) Decedent: Ludwig, Charles Wayne Proposed Personal Representative: Ludwig, Colton	Letters of Administration Hearing

Tentative Ruling:**APPEARANCE ORDERED**

The matter was continued for petitioner to file an Amended Petition, which would need to be on the mandatory DE-111. The document filed 7/24/2026 is not permissible. Again, petitioner must cure the defects previously identified with an amended petition on the mandatory judicial council form. Counsel should be prepared to submit the correct form at the hearing, and if it is complete, the Court would be prepared to GRANT the petition, as it appears all proofs of service and waivers of bond have been filed.

26-PRO-01071	Estate of MICHAEL P SHAUGHNESSY	
Line 12	Petitioner: SHAUGHNESSY, LINDA A Decedent: SHAUGHNESSY, MICHAEL P Proposed Personal Representative: SHAUGHNESSY, LINDA A	Probate of Will and Letters Testamentary Hearing

Tentative Ruling:**APPEARANCE OPTIONAL**

Although the caption does not indicate if petitioner seeks full authority under the IAEA, that is set forth in item 2C, so the court is prepared to waive this deficiency. The petition is GRANTED absent cogent objection.



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26-PRO-01089	Estate of Gerardo De Jesus	
Line 13	Petitioner: Estepa, Myla (LONGCHAMPS, MCKENNA B) Decedent: De Jesus, Gerardo Proposed Personal Representative: Estepa, Myla	Letters of Administration Hearing with ATA
Tentative Ruling: APPEARANCE OPTIONAL The petition is GRANTED absent cogent objection. Because petitioner is not a resident of California, bond will be required in the amount of \$20,000 per local rule. Formal order required.		

26-PRO-01147	Guardianship of CAMERON ALSALLOOM, AMIRA ALSALLOOM	
Line 14	Petitioner: SELDEN, CANDIE (Pro Se) Ward: ALSALLOOM, AMIRA Ward: ALSALLOOM, CAMERON Proposed Guardian: SELDEN, CANDIE	Appointment of Temporary Guardian for Person
Tentative Ruling: APPEARANCE OPTIONAL [No Order Provided] The Amended Petition for Appointment of Temporary Guardian of the Person is DENIED for failure to establish good cause for the appointment of a temporary guardian. [just as the initial petition for temporary guardianship was denied] The proposed wards are presently residing in the home of their paternal grandmother, and insufficient facts are provided to establish why their living situation should be disrupted. The hearing on the general guardianship is scheduled for 1/26/2027 and the petitioner herein should allow for the court's investigation to be completed.		



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PRO111106	CONSERVATORSHIP OF KEVIN L. CHAN	
Line 15	Conservatee: CHAN, KEVIN L. Conservator: CHAN, CYNTHIA (Pro Se) Conservator: CHAN, GLENN (Pro Se) Participant: CHAN, BRIAN (Pro Se)	Conservatorship Review - Biennial
Tentative Ruling: NO APPEARANCE The conservatorship shall continue and be reviewed in two (2) years. The assessment amount of \$850.00 for the cost of the court's investigation is ordered and deferred until the Court determines sufficient funds exist. The request to waive account is approved.		

PRO111107	CONSERVATORSHIP OF GEOFFREY B. MYNOCK, JR.	
Line 16	Conservatee: MYNOCK, GEOFFREY B., JR Conservator: MYNOCK, ROSEMARIE C. (HUTAR, LISA A.)	Conservatorship Review - Biennial
Tentative Ruling: NO APPEARANCE The conservatorship shall continue and be reviewed in two (2) years. The assessment amount of \$850.00 for the cost of the court's investigation is ordered and deferred until the Court determines sufficient funds exist.		

Hearings Total: 16